

**BEFORE THE  
FEDERAL COMMUNICATIONS COMMISSION  
WASHINGTON, D.C. 20554**

|                                   |   |                        |
|-----------------------------------|---|------------------------|
| In the Matter of                  | ) |                        |
|                                   | ) |                        |
| Space Exploration Holdings, LLC   | ) | ICFS File No.          |
| Application for Authorization of  | ) | SAT-LOA-20260108-00016 |
| Non-Geostationary Orbit Satellite | ) |                        |
| System (Orbital Data Center)      | ) |                        |

**SUPPLEMENTAL NOTICE  
REGARDING REQUESTS R1, R2, AND R4  
OF THE BAKKEN IR**

*Filed pursuant to 47 C.F.R. Section 1.41 as a Supplemental Notice to the Informal Request of Nikolai G. Bakken (March 17, 2026) ("Bakken IR"), Requests R1, R2, and R4. This filing supplements and does not replace, narrow, or supersede the Bakken IR or any prior filing. All prior filings, preservation clauses, and requests for relief remain independently operative.*

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**I. PURPOSE**

This Supplemental Notice places before the Commission new factual developments bearing on three pending requests in the Bakken IR: Request R1 (ex parte compliance confirmation), Request R2 (three-alternative findings on the Applicant's ex parte silence), and Request R4 (Government in the Sunshine Act compliance and process designation). Since the filing of the Bakken IR on March 17, 2026, the public record in two related ICFS proceedings has revealed a pattern of cross-docket ex parte presentations by the Applicant and its personnel that were not

disclosed in this proceeding and that Petitioner recognized their full implications for the first time on March 26, 2026.

This Notice: (1) defines what constitutes an ex parte presentation under the Commission's rules as applied to this permit-but-disclose proceeding; (2) identifies three specific filings by the Applicant's personnel in two related dockets that meet that definition; (3) updates the R2 analysis to reflect that Explanation One (no communications occurred) is no longer consistent with the observable record; and (4) identifies the Sunshine Act implications arising from the Applicant's cross-docket policy advocacy before Bureau personnel who are simultaneously evaluating the ODC Application.

## II. WHAT CONSTITUTES AN EX PARTE PRESENTATION

The Commission's ex parte rules are codified at 47 C.F.R. Sections 1.1200 through 1.1216. Public Notice DA 26-113 designated this proceeding as permit-but-disclose under 47 C.F.R. Section 1.1200 et seq.

Under Section 1.1202(a), an "ex parte presentation" is "any communication directed to the merits or outcome of a proceeding that, if written, is not served on all parties to the proceeding or, if oral, is made without opportunity for all parties to be present." The definition is functional, not formal. It turns on whether a communication is directed to the merits or outcome of the proceeding, not on whether it is styled as an ex parte notice, a letter, a comment, or any other label. The communication need not name the proceeding. It need not be filed in the proceeding's docket. If its substantive content addresses matters the Commission must decide in the proceeding, and it reaches personnel involved in that decision, it is directed to the merits or outcome of the proceeding within the meaning of Section 1.1202(a).

Under the permit-but-disclose designation, ex parte presentations are permitted but must be disclosed. Section 1.1206(b)(2) **requires that copies of written ex parte presentations be filed in the record of the proceeding within two business days of the presentation.** This is a specific, time-bound compliance obligation. It is not satisfied by eventual disclosure, by disclosure in a different docket, or by non-disclosure accompanied by silence. If an applicant could avoid this obligation by placing substantive positions before the same Bureau personnel through a related docket, the framework would be defeated by architecture rather than by intent: substantive input reaching the decision-makers off the record of the proceeding it most directly concerns, without notice to other parties and without opportunity to respond.

The Applicant may contend that its filings in the Amazon milestone docket and the Blue Origin docket were disclosed in those dockets and therefore satisfy the Commission's ex parte rules. That contention fails for three independent reasons:

(1) Section 1.1206(b) **requires disclosure in the record of the proceeding to which the communication is directed**. Where a communication addresses matters pending in multiple proceedings, the disclosure obligation attaches to each proceeding independently. The Commission's ICFS system does not cross-reference dockets. Material filed in one proceeding does not appear in another unless a party affirmatively places it there. Disclosure in the Amazon milestone docket is not disclosure in this proceeding.

(2) **The Applicant's own conduct proves the point**. On March 20, 2026, Cecilia Tenge-Rietberg filed in the Blue Origin docket specifically because the ODC record was not otherwise available there, attaching the full text of Amazon Leo's Petition to Deny and incorporating by reference all public comments from this proceeding. If cross-docket filing automatically satisfied disclosure obligations across related proceedings, the Tenge-Rietberg filing would have been unnecessary. The Applicant performed the required action outward. It did not perform the corresponding action inward. Docket boundaries are real. The Applicant's own filing practice proves it.

(3) Both the Goldman letter of March 25 and the Tenge-Rietberg letter of March 20 are styled as Dortch letters, and **uploaded to the docket as ex parte presentations**. The Applicant designated each as a presentation to the Commission within the meaning of Section 1.1202(a).

The remaining question is not whether they are ex parte presentations, but in which proceedings the disclosure obligation attaches.

### III. THREE CROSS-DOCKET FILINGS

Three separate filings by two individuals acting on behalf of the Applicant in two related ICFS proceedings contain substantive positions directed to matters the Commission must decide in this proceeding. None was disclosed in this proceeding's ICFS docket within the two-business-day window required by Section 1.1206(b)(2). Two of them occurred following the Bakken IR on March 17th 2026.

**A. Goldman Comments, Amazon Milestone Docket, March 9, 2026.** ICFS File Nos. SAT-MOD-20210806-00095 and SAT-MOD-20260129-00065. Twenty-three pages plus attachments. Filed by David Goldman, Vice President of Satellite Policy. Contains positions on: processing round framework, the Teledesic standard, milestone enforcement philosophy, spectrum sharing obligations, NGSO competitive dynamics, and the public interest standard for satellite authorizations. Each issue is pending in this proceeding. At footnotes 1 and 2, the filing directly cites the Petition to Deny of Amazon Leo filed in this proceeding by ICFS file number, quoting characterizations of the ODC Application and deploying them as argument in the

Amazon docket. The Applicant established the cross-docket nexus itself. Not disclosed in this proceeding. Two-business-day window expired March 11, 2026.

**B. Goldman Ex Parte Letter, Amazon Milestone Docket, March 25, 2026.** Same ICFS file numbers. Dortch letter filed by David Goldman. Reiterates and extends positions on milestone enforcement, the Teledesic framework, processing round priority, and interference management among NGSO systems. Each issue is pending in this proceeding. Not disclosed in this proceeding as of the date of this filing. The two-business-day window under Section 1.1206(b)(2) closes on March 27, 2026. If the Applicant discloses the Goldman letter in this proceeding's record before the close of that window, such disclosure would postdate the Bakken IR's formal challenge to the Applicant's zero-disclosure posture by ten days and would itself confirm that the Applicant's prior non-disclosure was a deliberate choice corrected only after being placed on notice. If the Applicant does not disclose the Goldman letter before the window closes, a third compliance failure will have occurred with full knowledge that the obligation had been identified on the record.

**C. Tenge-Rietberg Filing, Blue Origin Docket, March 20, 2026.** ICFS File No. SAT-LOA-20260310-00118. Dortch letter filed by Cecilia Tenge-Rietberg, Senior Satellite Policy Manager. Attaches the full text of Amazon Leo's Petition to Deny from this proceeding. Requests the Commission "apply the substantive and procedural arguments" from this proceeding to the Blue Origin application. States: "SpaceX incorporates by reference all public comments submitted on the record in its orbital data center application." Incorporates this proceeding's entire record into a related docket while disclosing nothing in return. Filed three days after the Bakken IR placed the Applicant on notice. Not disclosed in this proceeding. Two-business-day window expired March 24, 2026.

The Applicant's ex parte disclosure count in ICFS File No. SAT-LOA-20260108-00016 remains at zero as of the date of this filing. Two disclosure windows have expired without compliance. A third closes on the date of this filing. The Applicant has been on notice since March 17, 2026.

#### IV. UPDATED R2 ANALYSIS

Request R2 of the Bakken IR presented three mutually exclusive explanations for the Applicant's zero ex parte disclosures in this proceeding and requested that the Commission state which applies. Explanation One posited that no communications occurred. Explanation One is no longer consistent with the observable record.

The three filings documented in Section III demonstrate that the Applicant is actively and substantively engaged before the same Bureau on the same regulatory framework governing this proceeding. The Applicant is not silent. It is selectively engaged. In each instance, the filing reached Bureau personnel involved in evaluating the ODC Application. In each instance, the Applicant disclosed nothing in this proceeding. Two of the three filings occurred after March 17,

2026, when the Bakken IR placed the Applicant on formal notice that its zero-disclosure posture had been challenged. The Applicant continued the pattern after being placed on notice that the pattern itself had been identified.

This timeline must also be read alongside the Chairman's March 11, 2026 public statement on X, which the Applicant's own Consolidated Opposition cited at footnote 5 as authority for the proposition that a competing petitioner should not have exercised its statutory rights under 47 U.S.C. Section 309(d). The Applicant treated a Commissioner's public statement during the open pleading cycle as a substantive input supporting its opposition, while simultaneously maintaining zero ex parte disclosures of its own cross-docket advocacy. The transparency obligations of permit-but-disclose are invoked selectively: they apply to other parties but not to the Applicant.

Two of the three original explanations remain:

**Explanation Two:** the Applicant has determined that advocacy in this docket is unnecessary because the Commission's disposition is not in doubt. An applicant that believes the outcome is assured may nonetheless advocate in related dockets to shape the broader regulatory environment without disclosing that activity in the docket where the result is predetermined.

**Explanation Three:** communications bearing on this proceeding are occurring through channels not reflected in this proceeding's ICFS docket. This explanation is now independently supported by the observable record. The Applicant is placing substantive policy positions before Bureau personnel through filings in related dockets that do not appear on the ODC record and that ODC parties have had no opportunity to address. The functional effect is indistinguishable from an undisclosed ex parte presentation.

These are the precise mechanisms the Commission's rules contemplate for ensuring transparency across related proceedings: incorporation by reference, cross-docket citation, Dortch letters, and substantive ex parte presentation. **The Applicant deployed every one of them to impose procedural obligations on its competitors. It declined to use any of them to satisfy its own.** The Applicant did not lack the tools for compliance. It possessed them, demonstrated mastery of them, and chose to apply them in one direction only.

An applicant cannot demand the rigorous protections of administrative law in a competitor's docket while maintaining zero compliance with the most basic transparency mandate in its own. In the March 25 Dortch letter, Goldman demanded that the Commission provide "a consistent framework" to avoid "ad hoc, arbitrary treatment in violation of the APA." He invoked matching conditions for similarly situated operators and insisted on equal treatment as a matter of administrative law. These are the same principles that require Goldman to disclose his own advocacy in the proceeding where his employer is the party seeking authorization. The APA's prohibition on arbitrary and capricious action is not a weapon available only when it serves the Applicant's competitive interests. It is an obligation that attaches with equal force to the

Applicant's own conduct before the Commission. An applicant that demands consistent, non-arbitrary treatment for itself while maintaining zero ex parte compliance and other basic administrative housekeeping in its own pending proceeding is not invoking administrative law. It is selectively performing it. The same Applicant that filed twenty-three pages of policy argument and a formal Dortch letter in its competitors' dockets has not provided the Commission with an updated Form 312, a current ownership disclosure, or a cure of its acknowledged Section 1.65 obligation in its own.

The extended silence by Mr. Goldman in the Applicant's own docket, paired with vigorous advocacy in others, is equally notable: it suggests an applicant that has functionally abandoned its own proceeding as an administrative forum while treating its competitors' proceedings as the preferred venue for shaping the regulatory environment to its advantage. That is peak administrative gamesmanship. It creates a procedural asymmetry that the Commission's permit-but-disclose framework was explicitly designed to prevent, and that the Commission cannot, consistent with the very APA provisions the Applicant invokes in its competitor's docket, permit to stand without acknowledgment. To the extent that pattern is permitted to stand, it risks chilling the participation of parties who rely on the Commission's procedural safeguards to ensure that contested proceedings are resolved on a complete and transparent record.

#### **IV.A COMMISSION'S SAFEGUARDS**

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The Commission possesses a range of safeguards designed to identify and deter precisely this type of procedural asymmetry:

- (a) Section 1.1206(b) imposes affirmative disclosure obligations.
- (b) Section 1.1208 authorizes redesignation to restricted status where permit-but-disclose proves inadequate.
- (c) Section 1.17 prohibits written statements to the Commission that are materially misleading, whether by affirmative misrepresentation or by omission.
- (d) The Enforcement Bureau may investigate and impose forfeitures under 47 U.S.C. Sections 503(b) and 312.
- (e) The Commission may condition, modify, or revoke authorizations under Section 312(a) where a licensee has failed to comply with Commission rules.
- (f) The Commission retains inherent authority under 47 U.S.C. Section 154(i) to take such action as may be necessary in the execution of its functions.

These are not dormant authorities. They are the structural mechanisms through which the Commission maintains the integrity of its own proceedings.

The burden of compliance was not onerous. The Applicant filed at least three substantive filings across two related dockets during the active pleading period in question. These were not buried within routine submissions. They were deliberately placed instruments, each addressing regulatory questions squarely presented in this proceeding, and each filed to advance the Applicant's own competitive interests. Each filing reached Bureau personnel evaluating the ODC Application. Disclosure in this docket would have required nothing more than the filing of a short notice. The Applicant chose not to file one, even after the Bakken IR placed it on formal notice on March 17, 2026 that its disclosure posture had been challenged. The asymmetry is not merely between the Applicant and the public in the abstract. It is between the vigor of the Applicant's cross-docket advocacy to protect its corporate interests and the complete absence of any corresponding transparency in the proceeding where it is the party seeking authorization.

The public interest implications of this omission are heightened by the nature and scale of this proceeding. The ODC Application seeks authorization for up to one million non-geostationary orbit satellites. It has drawn formal objections from at least eight independent parties. It presents novel questions of regulatory classification, environmental certification, ownership disclosure, and orbital debris management that the Commission's own pending rulemaking acknowledges the existing framework was not designed to address. In a proceeding of this consequence, the Commission's adherence to its own procedural framework is not a technicality. It is the foundation on which the legitimacy of the Commission's ultimate disposition will rest, whether that disposition is grant, denial, or any intermediate action.

The APA requires that agency action be neither arbitrary nor capricious. 5 U.S.C. Section 706(2)(A). The Commission's own rules require that contested proceedings be resolved on a transparent record. The totality of factors presenting themselves in this proceeding, including the cross-docket pattern documented above, the Chairman's public statements during the pleading cycle, the Applicant's uncured Section 1.65 violation, and the unresolved threshold defects identified across prior filings, make the Commission's faithful application of its procedural safeguards not merely appropriate but essential to the institutional credibility of the outcome.

The Commission can and should enforce such restrictions and sanctions as it determines necessary to protect the integrity of its proceedings and the public interest. Petitioner does not prescribe the specific remedy. Petitioner observes that the Commission's own framework provides the tools and that the stakes of these proceedings require those tools to be used.

For the record, Petitioner acknowledges but does not at this time invoke the Commission's obligation under 47 U.S.C. Section 312(a)(4), which provides that the Commission may revoke any station license or construction permit for willful or repeated violation of, or willful or repeated failure to observe, any provision of the Commission's rules. However, the Applicant itself has aggressively invoked the Commission's enforcement authority against its competitors across multiple dockets:

(1) In the Amazon milestone docket, Goldman demanded that the Commission cap Amazon's constellation at the number of deployed satellites for failure to meet its milestones. (2) In its Consolidated Opposition filed in this proceeding, the Applicant demanded license revocation as the appropriate remedy for a competing petitioner's alleged noncompliance.

Across these proceedings, the Applicant demands strict adherence to the Commission's rules and invokes the full range of enforcement consequences available under them. Yet the same Applicant fails to comply with the structural, self-acting disclosure rules governing its own pending authorization, rules that carry national security and public interest implications the Commission itself has recognized.

Having placed the Commission's enforcement architecture squarely before the Bureau as the appropriate framework for evaluating compliance, the Applicant cannot credibly contend that the same framework is inapplicable to its own conduct. The Commission must therefore consider Section 312(a)(4) as part of the enforcement architecture available in this proceeding, not because Petitioner demands its application, but because the Applicant's own advocacy has established it as the governing standard for the regulatory questions presented across these related dockets.

Under that standard, the Commission has held that a violation is "willful" where the licensee knew or should have known that its conduct was contrary to the applicable rule. *Southern California Broadcasting Co.*, 6 FCC Rcd 4387, 4388 (1991).

This standard is preserved on this record for all purposes, including any future supplementation, petition for reconsideration, or enforcement referral, should the record or conduct concerning the Applicant warrant. Nothing in this preservation narrows, forecloses, or waives any other authority or remedy identified in this filing or in any prior filing.

## V. SUNSHINE ACT IMPLICATIONS

Additionally, request R4 of the Bakken IR invoked the Government in the Sunshine Act, 5 U.S.C. Section 552b, and requested confirmation that any multi-commissioner deliberations on this Application would comply with its requirements. The cross-docket pattern documented above introduces additional considerations.

**The Applicant has now willfully infused the substance of this proceeding into at least two other ICFS dockets, doing so expressly after the Bakken IR raised the Sunshine Act compliance requirements.** The Bureau personnel evaluating the ODC Application, the Amazon milestone extension, and the Blue Origin application are within the same organizational unit. The regulatory questions presented are substantially overlapping. The Applicant's own filings have linked the proceedings by citation and by incorporation by reference. Under these conditions, the Commission is not evaluating three independent applications in isolation. It is evaluating a set of

interconnected policy questions that span multiple dockets, involve common parties, and implicate the same regulatory framework.

These conditions are further compounded by the Chairman's public statements on the merits of the ODC Application. On February 4, 2026, the day of the Public Notice, the Chairman posted on X (formerly Twitter) characterizing the ODC Application in terms that Petitioner has preserved as potential prejudgment indicators under the Sangamon Valley standard. On March 11, 2026, during the open pleading cycle, the Chairman posted a public statement that the Applicant's own Opposition cited at footnote 5 as authority for the proposition that a competing petitioner should not have exercised its statutory rights under 47 U.S.C. Section 309(d). Petitioner identified the implications for the Commission's adjudicative process at Appendix E of the Bakken Reply (March 21, 2026).

Taken together, the observable record presents the following conditions: a Chairman who has publicly commented on the merits during the pleading cycle; an Applicant that is actively advocating on the governing regulatory framework across multiple dockets without disclosing any of that activity in the docket for its own pending authorization; and a Bureau staff evaluating interconnected applications that the Applicant's own filings have linked. These conditions, individually and collectively, implicate the Sunshine Act's transparency requirements and the Commission's obligations regarding the appropriate forum for disposition.

Petitioner does not ask the Commission to make a finding as to whether the Sunshine Act has been violated. Petitioner asks the Commission to state on the record:

- (1) whether multi-commissioner deliberations on this Application, or on any interconnected group of applications involving this Applicant and this regulatory framework, have occurred or will occur, and if so, whether those deliberations comply with 5 U.S.C. Section 552b;
- (2) whether the cross-docket pattern documented above requires this proceeding to be elevated from Bureau-level disposition to full Commission review under 47 C.F.R. Section 0.261; and
- (3) whether the Chairman's public statements on the merits during the pleading cycle require recusal, and if not, the basis for determining that those statements do not constitute prejudgment within the meaning of *Sangamon Valley Television Corp. v. United States*, 269 F.2d 221 (D.C. Cir. 1959), or if recusal is not warranted, a statement of the reasons.

## **VI. PRAYER FOR RELIEF**

The Commission is requested, in any order or staff letter disposing of or taking action on the ODC Application, to address the following:

- (1) State which of the two remaining explanations under R2 applies to the Applicant's zero ex parte disclosures in this proceeding, in light of the three cross-docket filings identified in Section III.

(2) State whether the Bureau's evaluation of the ODC Application has been informed, directly or indirectly, by any substantive position the Applicant has articulated in ICFS File Nos. SAT-MOD-20210806-00095, SAT-MOD-20260129-00065, or SAT-LOA-20260310-00118, or in any other docket not yet identified during the pleading window.

(3) State whether the Applicant's filings in the Amazon milestone docket and the Blue Origin docket during the active pleading cycle constitute ex parte presentations within the meaning of 47 C.F.R. Section 1.1202(a) as applied to this proceeding, and if so, direct their immediate disclosure on this proceeding's record under Section 1.1206(b).

(4) State whether the cross-docket interconnection documented above requires elevation to full Commission review under 47 C.F.R. Section 0.261.

(5) State whether the Chairman's public statements on the merits during the pleading cycle require recusal, and if not, the basis for that determination.

(6) State whether multi-commissioner deliberations on this Application or on interconnected applications involving this Applicant have occurred or will occur, and confirm compliance with 5 U.S.C. Section 552b.

(7) Determine, without prejudice to the merits of the Application, whether the Applicant's cross-docket filing pattern, continued ex parte activity without corresponding disclosure after being placed on notice, and failure to update its Form 312, ownership disclosure, or Section 1.65 obligation in its own docket warrant the imposition of any procedural restriction, condition, or sanction available under 47 C.F.R. Sections 1.1206(b), 1.1208, 1.17, or 47 U.S.C. Sections 154(i), 312, and 503(b), giving due weight to the fact that the Applicant has itself invoked license capping and revocation as the appropriate enforcement framework for noncompliance in these related proceedings, and state the basis for any determination that no such action is warranted.

Each of these requests is made independently under 47 C.F.R. Section 1.41 and 5 U.S.C. Section 555(e) and is preserved to the fullest extent allowable by law, including for purposes of petition for reconsideration under 47 U.S.C. Section 405 and judicial review under 47 U.S.C. Section 402(b) and 5 U.S.C. Section 706.

## **VII. SCOPE AND LIMITATIONS**

This filing takes no position on the merits of the Kuiper Systems milestone extension request in ICFS File Nos. SAT-MOD-20210806-00095 and SAT-MOD-20260129-00065 or the Blue Origin application in ICFS File No. SAT-LOA-20260310-00118. This filing does not seek party status in either proceeding. The references to filings in those proceedings are made solely for the purpose of placing on the ODC record factual developments bearing on the ex parte

transparency, Sunshine Act, and process designation questions already presented in Requests R1, R2, and R4 of the Bakken IR.

Nothing in this filing narrows, waives, or supersedes any argument, position, or request for relief in any prior filing. All prior filings remain independently operative.

This filing is submitted in the exercise of the First Amendment right to petition the government for redress of grievances, constitutes protected petitioning activity within an established federal administrative proceeding, and is entitled to the protections of the Noerr-Pennington doctrine to the fullest extent applicable. The liberal pro se pleading standard applicable to unrepresented filers before federal administrative agencies applies to this filing and to all prior filings by this Petitioner in this docket.

To the extent any aspect of this filing does not conform to a requirement of the Commission's rules, Petitioner requests waiver for good cause under 47 C.F.R. Section 1.3, noting that (1) Petitioner's Section 504 accessibility complaint filed March 25, 2026 remains unaddressed and unresolved, (2) the cross-docket filings identified in Section III were identified by Petitioner on March 26, 2026, with one disclosure window closing on the date of this filing, requiring preparation and submission within less than twenty-four hours by an unrepresented filer operating from a foreign jurisdiction without counsel, and (3) the Commission provides applicants with rapid acknowledgment of conforming applications but extends no reciprocal confirmation to petitioners or objectors, leaving an unrepresented filer with no mechanism to verify compliance before filing and no notice of any deficiency after. Petitioner is not aware of any nonconformity in this filing but requests notice and a reasonable opportunity to cure in the event one is identified.

Respectfully submitted,

**/s/ Nikolai G. Bakken**

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